

**U.S. Customs and Border Protection
Justification for Exception to Fair Opportunity (JEFO)**

[REDACTED]

Date: March 31, 2026

PR Number: 20157631

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), U.S. Customs and Border Protection (CBP), Office of Acquisition (OA), Information Technology Contracting Division (ITCD), on behalf of CBP's Office of Enterprise Services (ES), Office of Information and Technology (OIT), Management and Governance Directorate (MGD), prepared this justification for an exception to fair opportunity¹.

2. Nature and/or description of the action being approved.

CBP intends to issue a modification to firm, fixed-price (FFP) Task Order (TO) 70B04C25F00001307 in accordance with (IAW) the terms and conditions of the TO authorized by the Revolutionary FAR Overhaul (RFO) 52.217-8, *Option to Extend Services*, pursuant to RFO 16.507-6(b)(2). This modification action will exercise the Option appearing at Federal Acquisition Regulation (FAR) 52.217-8, extending the period of performance of this TO up to six (6) months by adding an additional three (3) month option and three (3), one (1) month option periods.

A JEFO was previously approved to sole source TO 70B04C25F00001307 as an interim task order with a total period of performance of six (6) months, pursuant to FAR 16.505(b)(2)(i)(A) under the One Acquisition Solution for Integrated Services Plus Unrestricted (OASIS+ UR), a General Services Administration (GSA) Multi-Agency Contract (MAC) for Enterprise Solutions support services.

The modification to extend services under TO 70B04C25F00001307 will effectively increase the potential task order value and extend the period of performance, inclusive of all options, from 6 months to 12 months to provide for the continuity of MGD services, time to adequately recompute this requirement amongst the OASIS+ contract awardees, and sufficient time transitions services from the incumbent to the successor contractor (time to complete background investigations (BI)s in particular).

3. A description of the supplies or services required to meet the agency's need (including the estimated value and the period of performance).

The required services outline the need for comprehensive strategy implementation, financial planning, and investment management support services to include the delivery of leading commercial off-the-shelf technology solutions for automation and decision support. This includes expert assistance with investment management, specifically for Capital Planning and Investment Control (CPIC) coordination, Office of Management and Budget (OMB) Business Cases, Standard Investment Reports, and Information Technology (IT) Portfolio formulation, along with technical development support for review and submission processes.

The requirement is to enhance OIT's budget formulation, planning, and reporting by bringing in best practices, increasing visibility and transparency into how IT funds are utilized to provide CBP mission outcomes and improve the transparency of strategic planning and governance.

¹ In this document, citations to RFO Part 16 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 26-04 R1 for FAR Part 16, which was issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, *Restoring Common Sense to Federal Procurement*, signed April 15, 2025.

**U.S. Customs and Border Protection
Justification for Exception to Fair Opportunity (JEFO)**

[REDACTED]

This requirement provides technical development and automation to streamline reporting investments through DHS periodic reporting tools, aligning with OIT's integrated strategy management system and its Trusted Partner Initiative, which fosters strategic relationships not only within CBP but also with DHS, other government agencies, industry, and international partners.

A key task of the requirement involves identifying cost-saving or avoidance opportunities through operational efficiencies, strategic acquisitions, and portfolio analysis, leveraging knowledge of various tools to develop and maintain executive dashboards. Specifically, for CBP/OIT/MGD's Strategic Planning & Mission Engagement Division and the Financial Management Division Dashboard Support, the requirement is for contractor personnel practitioners with relevant technical certifications to develop complex data models and maintain CBP and OIT's suite of 11 dashboards. Finally, the requirement includes support for the Unified Immigration Portal (UIP), supporting the financial management and delivery of leading COTS platforms to provide near real-time current and historical information on agency operations and immigration journeys.

The total estimated value of this requirement is [REDACTED] as detailed below:

Period		Unit Price	Total
Option Period 4	3mo.	[REDACTED]	[REDACTED]
Option Period 5	1 mo.	[REDACTED]	[REDACTED]
Option Period 6	1 mo.	[REDACTED]	[REDACTED]
Option Period 7	1 mo.	[REDACTED]	[REDACTED]
			Total [REDACTED]

4. Identify the exception to fair opportunity and provide supporting rationale, including a demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the exception cited.

_____ RFO 16.507-6(b)(1). The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

 X RFO 16.507-6(b)(2). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

_____ RFO 16.507-6(b)(3). The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

_____ RFO 16.507-6(b)(4). It is necessary to place an order to satisfy a minimum guarantee.

_____ RFO 16.507-6(b)(5). For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source.

_____ RFO 16.507-7. Brand-name justification for items peculiar to one manufacturer.

U.S. Customs and Border Protection
Justification for Exception to Fair Opportunity (JEFO)
Exceeding the SAT – RFO 16.507-6

Rationale (for all exceptions):

The statutory authority permitting other than full and open competition is implemented by RFO 16.507-6(b)(2) entitled, “ Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.”

CBP competed the Enterprise Business Management Support Services 2 (EBMSS2) Blanket Purchase Agreement (BPA) under full and open competition against the GSA Multiple Award Schedule (MAS). In September 2025, CBP awarded a multiple-award BPA established with both large and small business GSA contact holders. Thereafter, multiple timely protests were filed against the EBMSS2 BPA. As of the date of this JEFO, the EBMSS2 BPA is undergoing protests effectively nullifying the acquisition plan to re-compete the MGD requirement against the EBMSS2 BPA and make a timely task order award prior to the expiration of the original period of performance of TO 70B04C25F00001307.

The Contractor support for this requirement must begin April 1, 2026, without a break in service. This requirement involves investment management and budget support to ensure compliance with CBP, DHS, and OMB policies and guidance. The unique nature of the work being performed under this requirement necessitates that, to be successful, the contractor must possess comprehensive knowledge of the DHS Investment Evaluation, Submission, and Tracking (INVEST) system, collaboration/coordination with the DHS Office of the Chief Information Officer on the DHS Capital Planning and Investment Control (CPIC) process, custom-designed Dashboards and CBP OIT leadership requirements, IT financial management, planning, and analysis services key to cloud migration, tech refresh planning, and cyber security investments for funding requirements and justifications. In addition, the contractor must possess full background investigations prior to commencement of work. Deloitte Consulting currently works extensively in the INVEST system, thoroughly understands the CPIC process, designed the Dashboards used by CBP leadership for budget and investment planning purposes, and provides subject matter experts to assist in financial planning, forecasting, and cloud migration modernization efforts.

In addition to CPIC support, the incumbents provide IT financial management, planning, and analysis services supporting analytical platforms to inform in-year execution. This support is critical to key ongoing modernization efforts, i.e., cloud migration, tech refresh planning, and cyber security investments to inform funding requirements and justifications. Due to the planned retirement of the CBP National Data Center, this on-going support is critical in financial management and monitoring of CBP’s cloud environments and assisting funding decisions for cloud migration. The incumbent supports the initial financial planning process and cost estimation for the migration and has retained the personnel and expertise that would be costly to replace. Additionally, the size and scope of the incumbent has delivered modernization specific Subject Matter Experts (SMEs), as needed throughout the life of the contract within the framework of the firm fixed prices contract.

Failure to award this as a sole source would result in increased risk and delays in compliance in the following areas:

- 1) Inability to meet DHS’ due dates for investment reporting in INVEST for 74 IT investments;
- 2) Insufficient knowledge to effectively maintain Investment Dashboard reporting used by CBP OIT leadership for 74 investments;
- 3) Inadequate preparation for monthly Financial Review Board meetings with CBP OIT Leadership on

U.S. Customs and Border Protection
Justification for Exception to Fair Opportunity (JEFO)
Exceeding the SAT – RFO 16.507-6

budget planning and formulation;

4) Insufficient knowledge critical to the financial planning, forecasting, and monitoring of CBP IT modernization efforts, i.e., cloud migration, tech refresh, and mission critical programs; and

5) Insufficient knowledge and planning for CBP's cloud hosting costs, putting CBP at risk of overspending in cloud and physical data center usage and potentially data or application deletion from having insufficient funds.

Deloitte, with their **small business subcontractor Gray Rock**, maintains current and active CBP background investigations and specialized knowledge and experience necessary to perform the required services without disruption until the recompetit action can be duly executed by CBP.

This task order modification will be issued in accordance with the existing terms and conditions of the base award and GSA OASIS+UR contract.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer (CO) will determine the price fair and reasonable using one or all of the price analysis techniques detailed below, in accordance with RFO 15.404-1(b)(2), which include: (i) comparison of proposed prices to historical prices paid, whether by the Government or other than the Government, for the same or similar items; RFO 15.404-1(b)(4) comparison with competitive published price lists; and/or RFO 15.404-1(b)(5) comparison with the Independent Government Cost Estimate (IGCE). Furthermore, the inclusion of RFO 52.217-8, *Option to Extend Services*, in the task order base award permits the extension of services within limits and at the rates specified at the task order award, therefore, the CO can mitigate escalation costs by using previously negotiated rates deemed to be fair and reasonable.

6. Any other facts supporting the justification.

Funding variances, including lapse in annual appropriations, have affected this requirement; however, CBP OIT fully intends to compete the next iteration of this contract action to award a task order to include a 12-month base period and the inclusion of RFO 52.217-8, *Option to Extend Services*. CBP must maintain the incumbent of the interim task order as it continues to refine and define the requirements for the next competition.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

CBP is unequivocally committed to achieving competition, to the maximum extent practicable, for this requirement. To actively address and overcome the barriers that necessitated this current exception to fair opportunity, and to ensure a robust competitive environment for the subsequent acquisition, CBP OIT and ITCD have undertaken and will continue to execute proactive measures.

CBP OIT and ITCD are currently revising the acquisition plan to assess contract vehicles outside the EBMSS2 BPA. On March 20, 2026, CBP posted a Request for Information (RFI1801914) along with a draft Statement of Work (SOW) on GSA OASIS+.

**U.S. Customs and Border Protection
Justification for Exception to Fair Opportunity (JEFO)
Exceeding the SAT – RFO 16.507-6**

This RFI serves as a vital market research tool to leverage the GSA OASIS+ framework, analyze capable small business concerns to include opportunities for joint ventures and contract teaming arrangements, communicate with industry, assess comments and feedback received to refine the final SOW.

Furthermore, CBP OIT and ITCD will continuously monitor the market, engage with industry, and adapt the acquisition strategy as needed to maximize competition and prevent future reliance on exceptions to fair opportunity.

8. CBP intends to post this justification on www.sam.gov pursuant to RFO 16.507-6(f).

Pursuant to RFO 16.507-6(f), CBP intends to post this justification in SAM.gov within 14 days after executing the modification to exercise the option.

9. Technical/Requirements Personnel Certification:

[REDACTED]

[REDACTED]

[REDACTED]

10. Contracting Officer Certification and Approval:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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